

# US Patent & Trademark Office

## Patent Public Search | Text View

---

United States Plant Patent

PP36924

Kind Code

P2

Date of Patent

September 02, 2025

Inventor(s)

Smith; Donald R.

---

### ***Paeonia* plant named ‘Smithopus10’**

---

#### **Abstract**

A new and distinct cultivar of intersectional hybrid (Itoh) *Paeonia* plant named ‘Smithopus10’ is disclosed, large red flowers of semi-double to fully double form carried on strong stems, which present the flowers above and beyond the foliage. Plants have very attractive, dissected foliage, which lasts through the fall and is also highly disease resistant. Plants have a symmetrical, compact plant habit/shape which is excellent in the landscape. The new variety is a intersectional hybrid (Itoh) *Paeonia* normally produced as an outdoor ornamental garden plant.

---

**Latin Name:** Paeonia hybrid Smithopus10

**Inventors:** Smith; Donald R. (Fairfield, CT)

**Applicant:** Smith; Donald R. (Fairfield, CT)

**Appl. No.:** 18/966566

**Filed:** December 03, 2024

---

#### **Publication Classification**

**Int. Cl.:** A01H6/00 (20180101); A01H5/02 (20180101)

**U.S. Cl.:**

USPC PLT/316

#### **Field of Classification Search**

**CPC:** A01H (6/00); A01H (5/02)

**USPC:** PLT/316

---

## Background/Summary

(1) Latin name of the genus and species: *Paeonia hybrid*.

(2) Variety denomination: 'Smithopus10'.

### BACKGROUND OF THE INVENTION

(3) The new cultivar is a product of a planned breeding program conducted by the inventor to produce new *Paeonia hybrid* cultivars with strong stems, large panicles, compact habits, and attractive flower aging. The crossing resulting in the new cultivar was made in summer of 2013 in a backyard in Windham, NH.

(4) The seed parent is the cultivar *Paeonia* 'Martha W', unpatented. The pollen parent is the cultivar *Paeonia* 'KC Red', unpatented. The new cultivar was found and selected by the inventor in 2017 in the same backyard in Windham, NH. Asexual reproduction of the new cultivar 'Smithopus10' was first performed at a research laboratory during 2018 in the Netherlands by tissue culture. Through subsequent confidential propagation, multiple additional generations have been reproduced, having shown that the unique features of this cultivar are stable and reproduced true to type.

(5) Plants of the new cultivar were first sold Jul. 1, 2024 in the United States. This was from plant material originating from the inventor. Plants were advertised on a website from the Entity "Plants Nouveau", which has received a license, information and plant material directly from the inventor.

### SUMMARY OF THE INVENTION

(6) The cultivar 'Smithopus10' has not been observed under all possible environmental conditions. The phenotype may vary somewhat with variations in environment such as temperature, day length, and light intensity, without, however, any variance in genotype.

(7) The following traits have been repeatedly observed and are determined to be the unique characteristics of 'Smithopus10.' These characteristics in combination distinguish 'Smithopus10' as a new and distinct *Paeonia* cultivar: 1. New variety is an intersectional hybrid (Itoh) peony from a cross of an herbaceous peony (lactiflora) with a hybrid tree peony. 2. It is a sterile first-generation hybrid with triploid (3n) ploidy level. 3. New variety has large red flowers of semi-double to fully double form carried on strong stems, which present the flowers above and beyond the foliage. 4. New variety has very attractive, dissected foliage, which lasts through the fall and is also highly disease resistant. 5. New variety has a symmetrical, compact plant habit/shape and makes an ideal landscape plant.

### PARENT COMPARISONS

(8) Plants of 'Smithopus10' are similar to plants of the seed parent in most horticultural characteristics, however, plants of 'Smithopus10' differ in the following: 1. Seed parent has fully herbaceous stems and growth habit, whereas the new variety has stronger semi-woody to woody stems and many above-ground buds, yet grows primarily as an herbaceous plant. 2. Seed parent has pink flowers of single form with 11-13 petals, whereas the new variety has semi-double to double flowers with many more petals (about 37 to 47). 3. Seed parent blooms 1-2 weeks later than the new variety. 4. Seed parent has many lateral flowers per stem, whereas the new variety has only 1 or 2. 5. Seed parent is highly fertile both ways, whereas the new variety is a sterile triploid.

(9) Plants of 'Smithopus10' are similar to plants of the pollen parent in most horticultural characteristics, however, plants of 'Smithopus10' differ in the following: 1. 'KC Red' has large red-pink semi-double flowers, whereas the new variety has full double flowers. 2. 'KC Red' is a woody peony hybrid with shrub-like growth habit, whereas the new variety grows like an herbaceous perennial. 3. 'KC Red' has upright growth to 4 ½ feet tall, whereas the new variety is only about 2 1/2 feet tall. 4. 'KC Red' is very fertile both as a seed and pollen parent, whereas the new variety is sterile both ways.

## COMMERCIAL COMPARISON

(10) Plants of 'Smithopus10' can be compared to plants of the commercial cultivar *Paeonia* intersectional hybrid 'Scarlet Heaven', unpatented. Plants of 'Smithopus10' are similar to plants of 'Scarlet Heaven' in most horticultural characteristics, however, plants of 'Smithopus10' differ in the following: 1. 'Scarlet Heaven' has dark red flowers of single flower form (10-12 petals), whereas the new variety has fully double flowers (about 37-47 petals). 2. 'Scarlet Heaven' has poor foliage that becomes heavily spotted in early summer and dies back very early, whereas the new variety has completely unspotted, disease resistant foliage that lasts until late fall. 3. 'Scarlet Heaven' has average size flowers (5-6"), whereas the new variety has much larger flowers (7-9").

---

## Description

### BRIEF DESCRIPTION OF THE PHOTOGRAPHS

- (1) The accompanying photograph in FIG. 1 illustrates in full color a typical plant of 'Smithopus10' grown in a field in Fairfield, CT. This plant is approximately 3 years old.
- (2) FIG. 2 illustrates in full color a close-up of a mature flower of 'Smithopus10'
- (3) The photographs were taken using conventional techniques and although colors may appear different from actual colors due to light reflectance it is as accurate as possible by conventional photographic techniques.

### DETAILED BOTANICAL DESCRIPTION

(4) In the following description, color references are made to The Royal Horticultural Society Colour Chart 2015, except where general terms of ordinary dictionary significance are used. The following observations and measurements describe 'Smithopus10' plants grown outdoors in Camarillo, CA. The plants were 2 to 3 years old from large tubers, grown in 5-gallon pots. Temperatures ranged from 5° C. to 10° C. at night to 12° C. to 30° C. during the day. No artificial light, photoperiodic treatments were given to the plants. Measurements and numerical values represent averages of typical plant types. Botanical classification: *Paeonia hybrid* 'Smithopus10'.

### PROPAGATION

(5) Typically by shoot tissue culture. Root description: Freely branching storage root with numerous feeder roots. Roots various shades of tan and brown, not accurately measured with a color chart. Tubers: Elongated, typically 5 to 11 cm long and 2 to 4 cm in diameter. Colored near Brown 200C.

### PLANT

(6) Growth habit: Vigorous perennial herbaceous shrub. Semi-upright growth habit. Height: Approximately 65 to 75 cm. Plant spread: Approximately 60 cm. Stems: Length: Approximately 40 to 50 cm. Diameter: Average range 8 to 10 mm. Strength: Strong. Internode length: 6 to 12 cm, highly variable. Color: Near RHS Green 137D moderately covered in Greyed-Purple 187B. Texture: Glabrous. Age of plant described: Approximately 2 to 3 years.

### FOLIAGE

(7) Leaf: Alternate, pinnate compound, with an overall circular to ovate shape, which is slightly wider than long. Average fully expanded leaf 15 cm long and 18 cm wide, excluding the petiole. Horizontal to semi-erect attitude. Primary leaflets: *Shape*.—Obovate. *Quantity and arrangement*.—3 primary leaflets further divided into 3 to 5 deeply divided secondary leaflets. All leaflets sessile. *Length*.—Average range 7 to 10 cm. *Width*.—Average range 4 to 6 cm. Individual primary leaflet blades: *Shape of blade*.—Broad ovate, variably incised. *Apex*.—Acute. *Base*.—Attenuate. *Margin*.—Deeply incised. *Texture of top surface*.—Glabrous. *Texture of bottom surface*.—Glabrous. *Appearance of top surface*.—Matte. *Appearance of bottom surface*.—Matte. *Aspect*.—Flat to very slightly reflexed downward. Individual secondary leaflet blades: *Shape of blade*.—Oblanceolate,

variably incised. *Apex*.—Acute. *Base*.—Attenuate. *Margin*.—Deeply incised. *Texture of top surface*.—Glabrous. *Texture of bottom surface*.—Glabrous. *Appearance of top surface*.—Matte. *Appearance of bottom surface*.—Matte. *Aspect*.—Flat to very minutely reflexed downward. *Color*.—Emerging. Upper side: Near RHS Green 138A, veins Greyed-Purple 187B. Under side: Near RHS Green 139C. Young. Upper side: Near RHS Green 139B. Under side: Near RHS Green 139C. Mature. Upper side: Near RHS Green 139B. Under side: Near RHS Green 137B. *Venation*.—Type: Pinnate. Venation color upper side: Near RHS Green 139D. Venation color under side: Near RHS Yellow-Green 144C. *Petiole*.—Length: Average range 6 to 9 cm. Diameter: 5 to 6 mm. Color: Near RHS Green 139C upper surface flushed Greyed-Purple 187B. Texture: Glabrous.

## FLOWER

(8) Natural flowering season: Flowering begins Mid-May in Southern California. Flowering extends throughout the Summer, depending on environmental conditions. Inflorescence type and habit: Double form with conspicuous stamens. 3 to 4 loose whorls. Shape regularly round. Erect flower attitude. Flower position just above and beyond foliar plane. 14 Flower longevity on plant: Approximately 10 days on the plant. Varies considerably with environmental conditions. Quantity of flowers: 1 to 2 per stem. 5 to 9 flowering stems per plant. Flower size: *Diameter*.—Approximately 18 to 22 cm. *Depth*.—Approximately 5 cm. (Flower height). Peduncle: *Length*.—Average length 7 to 11 cm. *Diameter*.—Approximately 5 mm. *Color*.—Near RHS Green 139C streaked Greyed-Purple 187B. *Strength*.—Strong. *Texture*.—Glabrous and ribbed. Petals: *Petal arrangement*.—3 to 4 loose whorls of about 12 to 16 petals each. *Size*.—Length: Average 8 cm. Width: Average 6 cm. *Shape*.—Obovate. *Margin*.—Entire. Lightly ruffled. *Apex*.—Emarginate. *Base*.—Broad attenuate. *Texture*.—Smooth, glabrous all surfaces. *Aspect*.—Strongly recurved up. Color: Petals: When opening: *Opening*.—Upper surface: Near RHS Red 53A. Lower surface: Near RHS Red 53 flushed 53D. *Fully opened*.—Upper surface: Near RHS Red 53A, slightly flushed 53D. Lower surface: Near RHS Red 53A flushed 53D. Petaloids: Not present. Bud: *Shape*.—Globular. *Length*.—Approximately 2 cm. *Diameter*.—Approximately 2 cm. *Color*.—Near RHS Red 53A. Sepals: *Quantity*.—4. *Length*.—2 cm. *Width*.—2 cm. *Shape*.—Obovate. *Aspect*.—Cupped. *Attitude*.—Horizontal. *Apex*.—Rounded. *Base*.—Truncate. *Margin*.—Entire. Color. Interior Surface: RHS Green 139C, lightly flushed Red 53B. Exterior Surface: RHS Green 139C, heavily flushed Red 53B. *Texture*.—Glabrous. *Fragrance*.—Faint musky scent.

## REPRODUCTIVE ORGANS

(9) Androecium: Stamens: *Quantity*.—120 to 150. *Length*.—1.5 to 2.5 cm. *Anther color*.—Red 53D. Anthers: *Shape*.—Linear. *Length*.—1 mm. *Color*.—Yellow 12A. Gynoecium: Pistil: *Type*.—Compound. Petaloid, stigma only. *Number*.—4. *Carpel length*.—1.8 cm. *Carpel width*.—8 mm. *Openness of disc*.—Partly open. *Disc color*.—Yellow-Green 145C. *Carpel pubescence*.—Medium. *Stigma*.—Petaloid. 3 mm long and 4 mm in diameter. Very hard. Shape: Irregular kidney. Color: Near RHS Red 53A. *Ovary color*.—Near RHS Yellow-Green 145C flushed Red 53C.

## OTHER CHARACTERISTICS

(10) Disease and pest resistance: Observed resistance to foliar diseases of *Paeonia*. Typical foliar diseases of *Paeonia* include *Botrytis paeoniae*, *Graphiopsis chlorocephala* and *Phytophthora*. sp. No additional resistance nor susceptibility to the normal diseases and pests of *Paeonia* has been observed. Temperature tolerance: Typically USDA Zones 3 to 8. Fruit/seed production: Not observed.

## Claims

1. A new and distinct cultivar of *Paeonia* plant named ‘Smithopus10’ as herein illustrated and described.

---